

25STCV28822 25STCV28822

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-22

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Case Number: 25STCV28822 Hearing Date: September 22, 2026 Dept: 732

Andrew Nickerson v. Carrier X, LLC, et al.

Tuesday, September 22, 2026

CASE NUMBER: 25STCV28822

OPPOSED

Plaintiff Andrew

Nickerson's Motion for Sanctions against Defendants Carrier X LLC, Free

Conferencing Corporation, HD Carrier, LLC, Phoundry LLC, Wide Voice LLC, and David Erickson and their Counsel

Facts:

This is an action for retaliation and wrongful termination. The Complaint alleges as follows. Plaintiff Andrew Nickerson ("Plaintiff") was the CEO of Defendant Carrier X, LLC, and charged with managing Defendants Carrier X LLC, Free Conferencing Corporation, HD Carrier, LLC, Phoundry LLC, and Wide Voice LLC, which were effectively an integrated business operation owned and managed by Defendant David Erickson. (Complaint ¶¶ 13–18.) Plaintiff was terminated from his position as CEO following repeated clashes with Erickson in which Plaintiff refused to participate in schemes to fraudulently transfer assets among the companies and attempt to circumvent federal sanctions on Russia. (Complaint ¶¶ 19–36.)

Procedural History: Plaintiff

field the Complaint on October 2, 2026, alleging six causes of action:

1.

Lab. Code § 1102.5 Retaliation

2.

Breach of Fiduciary Duty

3.

Failure to Pay Wages

4.

Breach of Contract

5.

Wrongful Termination

6.

Accounting

On

August 18, 2026, this court denied Defendants' motion for protective order.

Plaintiff

filed the present motion for sanctions on August 26, 2026.

Defendant

filed an opposition on September 9, 2026.

Plaintiff

filed a reply on September 16, 2026.

Analysis

I.

MOTION FOR
SANCTIONS

The

present motion follows on the heels of this court's denial of Defendants Carrier

X LLC, Free Conferencing Corporation, HD Carrier, LLC, Phoundry LLC, Wide Voice LLC, and David Erickson's ("Defendants") motion for protective order on August 18, 2026, which sought to stay the deposition of nonparty Star Marcus and quash the relevant deposition notice. Plaintiff Andrew Nickerson ("Plaintiff") seeks sanctions against Defendants on the grounds that the motion was not substantially justified under Code of Civil Procedure § 2025.420, which states with regard to motions for a protective order:

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc., § 2025.420, subd. (h).)

Plaintiff

bases the motion principally upon the fact that when the motion was served on August 4, 2026, the deposition it sought to stay had already been completed on July 16, 2026, and thus the motion was moot when brought. (Motion at p. 4.) The court indeed denied the motion on mootness grounds.

No

sanctions are proper. Plaintiff could have sought sanctions in opposition to the motion for protective order, but did not do so. The request for sanctions now before the court includes not merely amounts incurred in opposing Defendants' motion for protective order, but also those incurred in bringing the present unnecessary supplement. (Saldana Decl. ¶ 12.) The request for sanctions is thus belated and inflated.

The

imposition of sanctions here would be unjust under these circumstances. Defendants' motion for protective order was moot when brought on August 4, 2026. But as Defendants indicate, this was because of administrative difficulties that caused the rejection of an attempted filing on July 15, 2026, the day before the deposition occurred. (Hudson Decl. ¶¶ 2–4.) Plaintiff's own motion presents ample grounds for its denial, demonstrating that the underlying facts raised questions of whether Plaintiff had made adequate provision for the

availability of the other parties on the deposition date in question, whether the defective filing of a motion for protective order stayed the deposition under Code of Civil Procedure § 2025.410, subd. (c), and whether Defendants' counsel in fact suspended the deposition under Code of Civil Procedure § 2025.470 when he appeared there to repeat his objections. (Motion at pp. 4–6.) Ordering sanctions on these facts would be unjust.

The
motion is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

ANDREW
NICKERSON.

Plaintiff,

v.

CARRIER X, LLC, et al.,

Defendants.

Case No.:
25STCV28822

Hearing Date: September 22, 2026

[TENTATIVE] RULING RE:

Plaintiff

Andrew Nickerson's Motion for Sanctions against Defendants Carrier X LLC,
Free Conferencing Corporation, HD Carrier, LLC, Phoundry LLC, Wide Voice LLC,
and David Erickson and their Counsel.

Plaintiff Andrew Nickerson's Motion for

Sanctions against Defendants Carrier X LLC, Free Conferencing Corporation, HD
Carrier, LLC, Phoundry LLC, Wide Voice LLC, and David Erickson and their
Counsel is
DENIED.

Defendants to give notice.

Dated: September 22, 2026

Hon.
Lynne Hobbs

Judge
of the Superior Court